

24NNCV06336 24NNCV06336

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Case Number: 24NNCV06336 Hearing Date: August 21, 2026 Dept: A

TENTATIVE RULING

AUGUST 21, 2026

MOTION TO COMPEL RESPONSES

MOTION

TO DEEM RFA MATTERS ADMITTED

MOTION

FOR ORDER DECLARING COUNSEL'S REPRESENTATION INVALID

Los

Angeles Superior Court Case # 24NNCV06336

(1) Motion to Compel Interrogatories
and (2) Motion to Deem RFA Admitted

MP: Plaintiff

Fanxin Zeng

RP: No

opposition received

(3) Motion for Order Declaring
Counsel's Representation Invalid

MP: Defendant

Zhong Fang

RP: Plaintiff

Fanxin Zeng

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

Fanxin Zeng ("Plaintiff") alleges that in June 2016, Plaintiff, Defendant Zhong Fang's ("Fang"), and Fang's attorney Ke Ye discussed Plaintiff's interest in obtaining a U.S. EB-5 investment visa. On July 1, 2026, Plaintiff and Defendant California Investment Regional Center, LLC ("CIRC"), a company controlled by Fang, entered into a written agreement whereby Plaintiff invested \$500,000 into the CIRC EB-5 Long Beach regional center project and was required to pay an additional \$50,000 for administrative and attorney's fees. In exchange for Defendants preparing all EB-5 application materials for submission to the United States Customs and Immigration Service ("USCIS"). On March 12, 2024, USCIS denied Plaintiff's EB-5 application because his investment did not constitute a qualifying EB-5 investment. USCIS claimed the investment was not "at risk," and thus did not qualify. Plaintiff sought a refund of his \$550,000 investment funds, administrative and attorney's fees, but Defendants refused and invested his funds in a Hawaiian project.

The Complaint, filed December 5, 2024, alleges: (1) Breach of Contract; (2) Fraud; and (3) Negligent

Misrepresentation. On April 22, 2025, CIRC's default was entered. On May 8, 2025, Fang (a self-represented litigant) answered the Complaint.

MOTIONS ON CALENDAR:

On April 30, 2026,
Fang filed a Motion for Order Declaring Plaintiff's Counsel's Representation Invalid and to Stay All Proceedings. On August 7, 2026, Zeng filed an opposition.

On May 15, 2026, Plaintiff filed a motion for order deeming Requests for Admissions ("RFA"), set one, admitted against Fang. On May 19, 2026, Plaintiff filed a motion to compel Fang's initial responses to Form Interrogatories ("FROG"), set two. The Court is not in receipt of an opposition brief. The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed consent to its being granted.

PLAINTIFF'S DISCOVERY MOTIONS:

A. Legal Standard

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling response and for a monetary sanction. (C.C.P. § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal. App. 3d 902, 905-906.)

If a party fails to respond to requests for admission in a timely manner, the requesting party may move for an order that the matters be deemed admitted. (C.C.P. § 2033.280(b).) The requesting party's motion must be granted by the court unless the party to whom the requests for admission have been directed has served a proposed response to the requests for admission that is in substantial compliance with C.C.P. § 2033.220 prior to the hearing. (C.C.P. § 2033.280(c).) By failing to timely respond, the party to whom the requests are directed waives any objection to the requests, including one based on privilege

or work product. (C.C.P. § 2033.280(a).)

B. Discussion

On

March 23, 2026, Plaintiff served on Fang the discovery requests, such that responses were due by April 28, 2026. As of the filing of the motions, Plaintiff states that he has not received Fang's responses.

Plaintiff's

unopposed motion to compel responses to the FROG is granted pursuant to C.C.P. § 2030.290. Fang is ordered to provide verified responses to the discovery requests, without objections, within 30 days of this order.

Plaintiff's

unopposed motion for an order deeming the RFAs admitted is granted, pursuant to C.C.P. § 2033.280.

C. Sanctions

The

Court has discretion to impose a monetary sanction against a party engaging in the misuse of the discovery process, or any attorney advising that conduct.

(C.C.P. § 2023.030(a).) Sanctions are only mandatory as against a party who unsuccessfully makes or opposes a motion to compel a response to interrogatories or RPD, unless the Court finds they acted with substantial justification or that other circumstances make the

imposition of the sanction unjust. (C.C.P. §§ 2030.290(c) & 2031.300(c).) It is mandatory for the court to impose a monetary sanction on the party or attorney, or both, whose failure to serve a

timely response to RFAs necessitating this motion. (C.C.P. § 2033.280(c).) Regardless, it is customary to grant sanctions where a party has

filed a motion to compel, and the other party fails to file an opposition.

(C.R.C. Rule 3.1348(a).)

Plaintiff

requests \$1,263.41 in sanctions for the FROG motion (= [0.5 hour by assistant Jennifer Xiang for the motion at \$250/hour] + [0.5 hour by counsel for the motion at \$710/hour] + [1 anticipated hour for the reply and to attend the

hearing at \$710/hour] + \$73.41 in filing fees).

(Gross FROG Decl., ¶¶4-5.) Plaintiff

requests \$1,490.91 in sanctions for the RFA motion (= [0.7 hour by assistant Jennifer Xiang for the motion at \$250/hour] + [0.5 hour by counsel for the motion at \$710/hour] + [1.25 anticipated hour to attend the hearing at \$710/hour] + \$73.41 in filing fees). (Gross RFA Decl., ¶4.)

The

requests are granted in the reasonable amount of \$683.70 per motion, as the motions are unopposed and the work appears to be duplicative for these relatively simple discovery motions. However, as Defendant is self-represented the Court will stay the imposition of the sanctions. If Defendant Fang has further violations or fails to comply the stay will be lifted and the sanctions due. The Court notes that it previously imposed and stayed a sanctions order for \$683.70 in connection with Plaintiff's motion to compel Fang's initial responses to RPDs on May 1, 2026. The Court issued the stay provided Defendant complied with the Court's order and no future unjustified discovery violations occurred. However, because that sanction order post-dated the requests in this motion the stay will remain.

FANG'S

MOTION FOR ORDER DECLARING PLAINTIFF'S COUNSEL'S REPRESENTATION INVALID AND TO STAY ALL PROCEEDINGS:

Fang

moves for an order declaring Plaintiff's counsel's representation as invalid, disqualifying or suspending Plaintiff's counsel from further participation in this action, and staying all proceedings until valid authorization is provided. Fang argues that Plaintiff is located in China and initiated litigation in the United States through counsel, but did not provide Fang with documentation demonstrating that Plaintiff properly authorized such representation. He argues that under Federal Rule of Civil Procedure ("FRCP"), Rule 44 and the California Evidence Code (no section cited), when a foreign individual retains legal counsel in the United States, authorization documents must be properly executed and authenticated, including a retainer agreement and a power of attorney or authorization document, all of which must be notarized. (Mot. at pp.2-3.)

The

Federal Rules of Civil Procedure are not applicable to California State Courts, and the Court declines to address their applicability. Fang has not cited any California code

section or other California authority to support the motion. The Court does note that FRCP Rule 44 does not include requirements to produce notarized authorizations or retainer agreements between a party and their counsel prior to an attorney undertaking representation (whether local or foreign) and to initiate/pursue the action. (See e.g., *Gagnon Co. v. Nevada Desert Inn* (1955) 45 Cal.2d 448, 459 [“As to Morse’s authority to commence the second Nevada action there is a presumption that he had such authority. The act of the attorney in entering the appearance of a defendant carries with it a presumption of due authority upon his part to do so.”] [internal quotation marks omitted].)

For these reasons, Fang’s motion to disqualify Plaintiff’s counsel and to stay the action is denied.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court’s records.

ORDER

(1) Plaintiff Fanxin

Zeng’s Motion to Compel Responses; (2) Plaintiff’s Motion to Deem RFAs Admitted; and (3) Defendant Zhong Fang’s Motion for Order Declaring Plaintiff’s Counsel’s Representation Invalid and to Stay All Proceedings came on regularly for hearing on August 21, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, did then and there rule as follows:

PLAINTIFF’S MOTION TO COMPEL DEFENDANT ZHONG FANG’S RESPONSES TO FORM INTERROGATORIES, SET TWO IS GRANTED. RESPONSES ARE TO BE MADE WITHIN 30 DAYS.

PLAINTIFF’S MOTION TO DEEM THE REQUESTS FOR ADMISSION ADMITTED IS GRANTED AS AGAINST DEFENDANT ZHONG FANG.

Defendant ZHONG FANG IS

ordered to pay \$683.70 in monetary sanctions FOR THE FROG AND RFA MOTIONS to

Plaintiff. PAYMENT REMAINS STAYED

PENDING COMPLIANCE WITH THIS ORDER AND NO SUBSEQUENT DISCOVERY VIOLATIONS.

DEFENDANT ZHONG FANG'S MOTION FOR

ORDER DECLARING PLAINTIFF'S COUNSEL'S REPRESENTATION INVALID AND TO STAY ALL

PROCEEDINGS IS DENIED.

Plaintiff

TO GIVE NOTICE.

IT IS SO ORDERED.